



## Order under Section 21.2 of the Statutory Powers Procedure Act and the Residential Tenancies Act, 2006

**Citation:** Skyline Living v Zepotoczny Berger, 2025 ONLTB 98329

**Date:** 2025-12-31

**File Number:** LTB-L-053948-24-RV

**In the matter of:** 909, 49 QUEEN ST E  
CAMBRIDGE ON N3C0G9

|                 |                         |          |
|-----------------|-------------------------|----------|
| <b>Between:</b> | Skyline Living          | Landlord |
|                 | <b>And</b>              |          |
|                 | Janet Zepotoczny Berger | Tenant   |

### Review Order

Skyline Living (the 'Landlord') applied for an order to terminate the tenancy and evict Janet Zepotoczny Berger (the 'Tenant') because the Tenant did not pay the rent that the Tenant owes.

This application was resolved by order LTB-L-053948-24 issued on December 18, 2025.

On December 30, 2025, the Tenant requested a review of the order.

A preliminary review of the review request was completed without a hearing. In determining this request, I reviewed the materials in the LTB's file as well as the audio recording for this hearing.

### Determinations:

1. The Tenant's request to review largely restates the Tenant's position on issues that were raised and addressed at the original hearing and voices their disagreement with the Member's determinations.
2. Interpretation Guideline 8 - Review of an Order states:

A review is not an appeal or an opportunity to change the way a case was presented.

The purpose of the review process is not to provide parties with an opportunity of presenting a better or different case than they did at first instance. There is nothing in the record or in the request for review to support a determination that the Member applied improper principles in assessing the evidence introduced or that there was insufficient evidence before the Board to support its conclusions. I would not interfere with the

assessment of the evidence by the Member of first instance, who had the opportunity of observing the witnesses and of hearing the evidence in its totality.

TSL-51694-14-IN-RV (Re), 2015 CanLII 23959 (ON LTB) at para 10

3. The Tenant's disagreement with the Member's determinations is not sufficient grounds for review. There is no indication that the Member applied improper principles in assessing the evidence introduced in this case or that there was insufficient evidence before the Board to support the Member's conclusions.
4. The Tenant's request to review also raises issues that were not raised at the original hearing (e.g. amount of last month's rent deposit, loaner phone). The Tenant is not permitted to raise issues on review that were not raised at the original hearing as this would permit the Tenant to present a better or different case than they did at first instance, contrary to the Guideline.
5. As a result, based on the submissions made in the request, I am not satisfied that there is a serious error in the order or that a serious error occurred in the proceedings or that the Tenant was not reasonably able to participate in the proceeding.

**It is ordered that:**

1. The request to review order LTB-L-053948-24 issued on December 18, 2025 is denied. The order is confirmed and remains unchanged.

**December 31, 2025**

**Date Issued**

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Richard Ferriss

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor  
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.